



CHAPTER lxi.

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1899 relating to Wemyss Tramways. A.D. 1910.
[26th July 1910.]

WHEREAS His Majesty's Secretary for Scotland has after inquiry held before Commissioners made the Provisional Order set forth in the schedule hereunto annexed under the provisions of the Private Legislation Procedure (Scotland) Act 1899 and it is requisite that the said Order should be confirmed by Parliament: 62 & 63 Vict.
c. 47.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Provisional Order contained in the schedule hereunto annexed shall be and the same is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Wemyss Tramways (Extensions) Order Confirmation Act 1910. Short title.

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SCHEDULE.

*Provisional Order to authorise the Wemyss and District
Tramways Company Limited to construct additional
Tramways and for other purposes.*

WHEREAS by the Wemyss Tramways Order 1905 Randolph Gordon Erskine Wemyss was authorised to construct and maintain the tramways in the county of Fife therein described and in accordance with the provisions of the said Order the rights powers authorities obligations and liabilities thereby granted and imposed were transferred to the Wemyss and District Tramways Company Limited (herein-after called "the Company") incorporated under the Companies Acts 1862 to 1900 on the eighth day of November one thousand nine hundred and five:

And whereas the Company have constructed and are working the tramways authorised by the said Order of 1905 except the tramway No. 11 of that Order:

And whereas it is expedient that the Company should be authorised to construct the additional tramways and to execute the street works herein-after in this Order described:

And whereas the tramways authorised by this Order are an extension of the tramway system of the Company and it is expedient that certain provisions of the said Order of 1905 should be extended to the tramways by this Order authorised:

And whereas it is expedient that the other powers in this Order contained should be conferred on the Company:

And whereas plans and sections showing the lines and levels of the tramways and other works by this Order authorised and showing the lands required or which may be taken for the purposes or under the powers of this Order and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited in the offices of the principal sheriff clerk for the county of Fife at Cupar and Kirkcaldy respectively and are herein-after respectively referred to as the deposited plans sections and book of reference:

And whereas the purposes aforesaid cannot be effected without an Order of the Secretary for Scotland confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1899: A.D. 1910.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary for Scotland orders as follows:—

1. This Order may be cited as the *Wemyss Tramways (Extensions) Order 1910* and shall come into operation at the date of the passing of the Act confirming the same which date is herein-after referred to as “the commencement of this Order.” Short title and commencement.

2. The following Acts and parts of Acts (that is to say):— Incorporation of general Acts.
The Lands Clauses Acts;

Sections 6 8 to 16 18 to 37 60 to 68 70 to 85 and 90 to 99 so far as the same are not repealed of the Railways Clauses Consolidation (Scotland) Act 1845; and

Section 3 (Interpretation of terms) and Part II. (Construction of tramways) and Part III. (General Provisions) of the Tramways Act 1870;

so far as they are applicable to and are not varied by or inconsistent with the provisions of this Order are incorporated with and form part of this Order and shall apply to the undertaking Provided that—

(1) The provisions of the Railways Clauses Consolidation (Scotland) Act 1845 herewith incorporated shall apply only to any tramways or portions of tramways which under the provisions of this Order may be constructed on private lands and for the purposes thereof such tramways shall be deemed to be railways and the Company shall be deemed to be a railway company:

(2) The provisions of Part II. and Part III. (excepting sections 34 to 40 43 44 45 49 to 56 63 64 and so much of sections 46 and 47 as relates to byelaws to be made by the promoters of a tramway) of the Tramways Act 1870 herewith incorporated shall not apply to any tramways or portions of tramways which under the provisions of this Order may be constructed on private lands.

3. In this Order the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless Interpretation.

A.D. 1910. there be something in the subject or context repugnant to such construction And in this Order unless the context otherwise requires—

“The Company” means the Wemyss and District Tramways Company Limited;

“Tramway” includes tramway and tramroad;

“The sheriff” means the sheriff of the county of Fife and includes his substitutes;

“The tramway” “the tramways” “the street works” and “the undertaking” mean respectively the tramways the street works and the undertaking or any part thereof by this Order authorised;

“Mechanical power” includes steam electrical and every other motive power not being animal power;

“Engine” includes motor;

“Road” means street or road;

“Waste” means that part of the road which consists of waste land at the side thereof not for the time being formed and maintained for carriage traffic;

“The Order of 1905” means the Wemyss Tramways Order 1905;

“The Kirkcaldy Corporation” means the provost magistrates and councillors of the royal burgh of Kirkcaldy.

TRAMWAYS AND STREET WORKS.

Power to
make tram-
ways.

4. Subject to the provisions of this Order the Company may make form lay down work use and maintain the tramways herein-after described in the lines and within the limits of deviation and according to the levels shown on the deposited plans and sections and in all respects in accordance with those plans and sections with all proper rails plates works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for that purpose but nothing in this section contained shall empower the Company to lay down any tramway along any public road otherwise than in accordance with the provisions of the Tramways Act 1870 as modified by and incorporated with this Order Provided that nothing in this Order shall authorise any interference with electric lines and works of any undertakers under the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15

of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section. A.D. 1910.

The tramways herein-before referred to and authorised by this Order will be situate wholly in the county of Fife and are—

Tramway No. 2 (2 miles 2 furlongs 1·00 chain or thereabouts in length of which 1 mile 5 furlongs 2·00 chains or thereabouts is single line and 4 furlongs 9·00 chains or thereabouts is double line) situate in the burgh of Lochgelly and the parish of Auchterderran commencing in Bank Street Lochgelly at a point seventeen yards or thereabouts south of Auchterderran Road passing thence into and along Auchterderran Road to and terminating at Auchterderran at a point opposite "The Auld Hoose" public-house:

Tramway No. 2A (1·60 chains or thereabouts in length and single line throughout) situate wholly in the burgh of Lochgelly in the parish of Auchterderran commencing in Auchterderran Road Lochgelly by a junction with Tramway No. 2 at a point twenty-six yards or thereabouts east of Station Road passing thence into and terminating in Station Road at a point twenty-seven yards or thereabouts north of Auchterderran Road:

Tramway No. 3 (Partly tramroad 4 furlongs 2·60 chains or thereabouts in length and partly tramway 2 miles and 2·40 chains or thereabouts in length making together 2 miles 4 furlongs 5·00 chains or thereabouts in length of which 2 miles and 0·50 chain or thereabouts is single line and 4 furlongs 4·50 chains or thereabouts is double line) situate in the parishes of Auchterderran and Kinglassie commencing at Auchterderran by a junction with Tramway No. 2 at its termination above described passing thence along the main road from Auchterderran to Kinglassie and Kinglassie Road to a point near the entrance gate to Kinglassie Cemetery thence across private lands situate to the west and north of Kinglassie to and terminating on the northern side of the main road at Kinglassie at a point twenty-five yards or thereabouts west of the Fife Constabulary Station:

Tramway No. 4 (Partly tramroad 2 miles and 8·30 chains or thereabouts in length and partly tramway 1 mile

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7 furlongs 3·70 chains or thereabouts in length making together 4 miles and 2·00 chains or thereabouts in length of which 3 miles 4 furlongs 3·70 chains or thereabouts is single line and 3 furlongs 8·30 chains or thereabouts is double line) situate in the parishes of Kinglassie Kirkcaldy and Dysart and Markinch commencing at Kinglassie by a junction with Tramway No. 3 at its termination above described passing thence in an easterly direction along the main road to a point two hundred and forty yards or thereabouts east of the road leading therefrom to Kinglassie Pit thence in a generally south-easterly direction across private lands to and crossing the main road bounding the western side of Inchdairnie Park at a point twenty yards or thereabouts north of the centre of Lochty Bridge thence in a generally south-easterly direction across Inchdairnie Park and further private lands to a point in Strathore Road at Redford one hundred and sixty-six yards or thereabouts east of the road leading therefrom to the house known as "Sked-doway" thence in an easterly direction along the said Strathore Road to Thornton into and terminating in the main road to Kirkcaldy at a point twenty-three yards or thereabouts south of Strathore Road:

Tramway No. 5 (1 mile 6 furlongs 5·20 chains or thereabouts in length of which 1 mile 3 furlongs 8·30 chains or thereabouts is single line and 2 furlongs 6·90 chains or thereabouts is double line) situate in the parishes of Markinch and Kirkcaldy and Dysart commencing at Thornton by a junction with Tramway No. 4 at its termination above described passing thence in a southerly direction along and terminating in the main road to Kirkcaldy at a point sixty-one yards or thereabouts south of Race Road:

Tramway No. 6 (2 furlongs 3·80 chains or thereabouts in length of which 2 furlongs 0·30 chain or thereabouts is single line and 3·50 chains or thereabouts is double line) situate in the parish of Kirkcaldy and Dysart and the Royal Burgh of Kirkcaldy commencing by a junction with Tramway No. 5 at its termination above described passing thence in a southerly direction along the main road to Kirkcaldy into along and terminating in Rosslyn

Street Gallatown by a junction with the existing tramways of the Company at a point eighteen yards or thereabouts south of Randolph Road: A.D. 1910.

Tramway No. 7 (partly tramroad 2 furlongs and 0·20 chain or thereabouts in length and partly tramway 2·80 chains or thereabouts in length making together 2 furlongs 3·00 chains or thereabouts in length of which 1 furlong 9·50 chains or thereabouts is single line and 3·50 chains or thereabouts is double line) situate in the parish of Kirkcaldy and Dysart and the royal burgh of Kirkcaldy commencing by a junction with Tramway No. 5 at its termination above described passing thence along the main road to Kirkcaldy and in a south-easterly direction across private lands to and terminating in Randolph Road by a junction with the existing tramways of the Company at a point three hundred and twenty-five yards or thereabouts north-east of Rosslyn Street:

Provided that none of the tramways referred to in this section shall be laid otherwise than as follows (that is to say):—

- (A) Where the tramway line is shown on the deposited plans as a single line laid in the centre of the road the total width of the carriageway of the road shall not be less than twenty-seven feet and where the tramway line is shown on the deposited plans as a single line laid on the side of the road the total width of the carriageway of the road including the tramway track shall not be less than twenty-four feet and the widening of the roadway shall be carried out by the Company at their own expense without encroachment on existing footpaths or otherwise with the substitution of footpaths of a like width as those now existing Provided always that the county council of Fife shall within a period of twelve months after the commencement of this Order provide to the Company free of expense the land required for the purposes of such widening Provided further that where the land necessary to provide a carriageway at least twenty-four feet in width cannot be obtained the line shall be doubled Provided further that notwithstanding the doubling of the line shown on the deposited plans through the village of Bowhill

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the width of the carriageway within the limits of the street works K L M N herein-after described shall be widened to at least twenty feet in addition to footpaths as wide as those presently existing :

- (B) The total width of the bridge and the approaches thereto carrying the road from Lochgelly to Auchterderran over the River Ore and of the bridge and the approaches thereto carrying the road from Kirkcaldy to Thornton over the River Ore shall not be less than twenty-seven feet and the widening of the said bridges shall be carried out by the Company at their own expense Provided that if the Kirkcaldy district committee contribute the money required for the purpose the Company shall further widen the said bridges to such extent as the county council of Fife may require Provided further that the Company shall not be bound to widen such bridges and approaches unless and until the county council of Fife supply the necessary land.

Power to
make street
works.

5. Subject to the provisions of this Order the Company may make the street works herein-after described in the lines and within the limits of deviation and according to the levels shown on the deposited plans and sections together with all necessary and proper works improvements junctions connexions approaches and conveniences connected therewith or incidental thereto and may enter upon take hold and use such of the lands and buildings delineated on the deposited plans and described in the deposited book of reference as may be required for those purposes and may enter upon open break up and interfere with such streets or roads as may be necessary for the like purposes.

The street works herein-before referred to and authorised by this Order will be situate wholly in the county of Fife and are—

Work H.—A widening on the eastern side of Auchterderran Road extending from a point seventy-eight yards or thereabouts north of the centre of Bow Bridge carrying the said road over the River Ore for a distance of two hundred and five yards or thereabouts in a northerly direction :

Work J.—A widening on the southern side of Auchterderran Road at Auchterderran for a distance of sixty-five yards or thereabouts being the extent of the frontage to that road of the property known as "Balgonie" :

Work K.—A widening on the northern side of Auchterderran Road at Auchterderran between points respectively situate forty-five yards or thereabouts west and one hundred and two yards or thereabouts east of a point opposite the road leading from Auchterderran Road to Bowhill Pit: A.D. 1910.

Work L.—A widening on the southern side of Auchterderran Road at Auchterderran extending from the eastern side of the road leading from Auchterderran Road to Bowhill Pit for a distance of one hundred and eighty-two yards or thereabouts in an easterly direction:

Work M.—A widening on the south-western side of the main road from Auchterderran to Kinglassie at Auchterderran between points respectively situate seventy-five yards or thereabouts and one hundred and eighty-five yards or thereabouts north-west of the entrance gate in that road to the property known as "Craigderran":

Work N.—A widening on the north-eastern side of the main road from Auchterderran to Kinglassie at Auchterderran between points respectively situate one hundred and fifty-five yards or thereabouts and two hundred and forty yards or thereabouts north-west of a point opposite the entrance gate in that road to the property known as "Craigderran":

Work O.—A widening on the north-eastern and south-eastern sides respectively of the main road from Auchterderran to Kinglassie and Kinglassie Road extending for a distance of fifteen yards or thereabouts on each of those sides of the said roads and being a rounding off of the corner of the forecourt of the property known as "Dunroy":

Work P.—A widening on the eastern and south-eastern sides of Kinglassie Road extending for a distance of twenty yards or thereabouts on each of those sides of the said road and being a rounding off of the corner of that road at a point two hundred and seventy-three yards or thereabouts west of the western boundary wall of Kinglassie Cemetery:

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Works H J K L M N and O will be situate in the parish of Auchterderran:

Work P will be situate in the parish of Kinglassie:

Provided always that the street works H to P inclusive herein-before described shall be carried out simultaneously with the construction of the tramways in the streets proposed to be widened or within such extended period as the Board of Trade may approve.

LANDS.

Correction of errors &c. in deposited plans and book of reference.

6. If there be any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Company after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to the sheriff for the correction thereof and if it appear to the sheriff that the omission misstatement or wrong description arose from mistake he shall certify the same accordingly and shall in such certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate shall be deposited with the principal sheriff clerk for the county of Fife and a duplicate thereof shall also be deposited with the town clerk of the burgh or with the clerk of the parish council of the parish as the case may be in which the lands affected thereby are situate and such certificate and duplicate respectively shall be kept by such principal sheriff clerk and town clerk and clerk of the parish council respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Company to take the lands and execute the works in accordance with such certificate.

Period for compulsory purchase of lands.

7. The powers of the Company for the compulsory purchase of lands for the purposes of this Order shall cease after the expiration of three years from the commencement of this Order.

Persons under disability may grant servitudes &c.

8. Persons empowered by the Lands Clauses Acts to sell and convey or discharge lands may if they think fit subject to the provisions of those Acts and of this Order grant to the Company any servitude right or privilege (not being a servitude

right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands feu-duties ground annuals and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such servitudes rights and privileges as aforesaid respectively.

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9. In addition to the other lands which the Company are by this Order authorised to purchase and acquire they may purchase take on lease or acquire by agreement and may hold for the purposes of the undertaking any lands not exceeding five acres and they may on such lands and on any other lands purchased or acquired under the authority of this Order erect or construct and hold carriage and engine houses shelters waiting rooms gatekeepers' houses stables sheds depôts yards offices buildings stations sidings works and other conveniences in connexion with the undertaking but nothing in this Order shall exonerate the Company from any action or other proceeding for nuisance in the event of any nuisance being caused or permitted by them on any such lands.

Purchase of
lands by
agreement.

10. And whereas in the construction of the tramways and works hereby authorised or otherwise in exercise of the powers of this Order it may happen that portions only of certain properties shown or partly shown on the deposited plans may be sufficient for the purposes of the same and that such portions may be severed from the remainder of the said properties without material detriment thereto Therefore notwithstanding section 90 of the Lands Clauses Consolidation (Scotland) Act 1845 the owners of and other persons interested in the properties described in the schedule to this Order and whereof parts only are required for the purposes of this Order may if such portions can in the opinion of the jury arbiter or other authority to whom the question of disputed compensation shall be submitted be severed from the remainder of such properties without material detriment thereto be required to sell and convey to the Company the portions only of the premises so required without the Company being obliged or compellable to purchase the whole or any greater portion thereof the Company paying for the portions required by them and making compensation for any damage sustained by the owners thereof and other parties interested therein by severance or otherwise.

Owners may
be required
to sell parts
only of cer-
tain lands
and build-
ings.

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CONSTRUCTION AND MAINTENANCE.

Inspection
by Board
of Trade.

11. No tramway shall be opened for public traffic until it has been inspected and certified to be fit for such traffic by the Board of Trade.

Period for
completion
of tramways.

12. The tramways shall be completed within five years from the commencement of this Order and on the expiration of that period the powers by this Order granted to the Company for executing the same or otherwise in relation thereto shall cease except as to so much thereof as shall be then completed.

Gauge of
tramways.

13.—(1) The tramways shall be constructed on a gauge of three feet six inches or such other gauge as may from time to time be approved by the Board of Trade but carriages or trucks adapted to run on railways shall not be run thereon.

(2) So much of section 34 of the Tramways Act 1870 as limits the extent of the carriage used on any tramway beyond the edge of the wheels of such carriage shall not apply to carriages used on the tramways but no carriage or engine shall exceed six feet six inches in width or such other width as may from time to time be prescribed by the Board of Trade.

Power to
deviate in
constructing
Tramways
Nos. 3 4
and 7.

14. The Company in constructing Tramways Nos. 3 4 and 7 on private lands may deviate laterally from the lines thereof shown on the deposited plans to any extent within the limits of deviation shown on those plans and they may deviate vertically from the levels thereof shown on the deposited sections except where any such tramway is laid across any public street or road to the extent and subject to the conditions prescribed in the case of a railway by sections 11 12 14 and 15 of the Railways Clauses Consolidation (Scotland) Act 1845:

Provided that nothing in this Order shall authorise the Company to construct along any existing public road any part of the tramways which is not shown on the deposited plans as intended to be so constructed.

Power to
make subsi-
diary works.

15. Subject to the provisions of this Order and within the limits of deviation shown on the deposited plans the Company in connexion with the street works and for the purposes thereof may with the consent of the local authority make junctions and communications with any existing streets which may be interfered with by or be contiguous to such works and may with the like consent make diversions widenings or alterations

of lines or levels of any existing streets for the purpose of connecting the same with such works or otherwise and may with the like consent alter divert and stop up all or any part of any drain sewer or channel within the said limits the Company providing a proper substitute before interrupting the flow of sewage in any drain or sewer and making compensation for any damage done by them in the execution of any such works under the powers of this section. A.D. 1910.

16. The street works so far as the same affect any public street or road when the same shall respectively have been completed to the satisfaction of the road authority shall together with the surface rights in all lands laid into and appropriated for such works and the subsidiary works connected therewith vest in such road authority and shall for all purposes form part of the streets to which they are respectively added. Vesting of street works in road authority.

17.—(1) The Company may subject to the provisions of this Order with the consent of the Board of Trade make maintain alter and remove such crossings cross-overs passing places sidings turnouts junctions and other works in addition to those particularly specified in and authorised by this Order as they find necessary or convenient for the efficient working of the tramways or for providing access to any generating stations stables carriage-houses works or premises of the Company or for providing access to any premises near any part of the tramways or for forming junctions with other tramways tramroads waggonways or light railways. Power to make additional crossings and to double tramway lines.

(2) Notwithstanding anything shown on the deposited plans the Company may with the consent of the Board of Trade lay down double lines in lieu of single or interlacing lines or single lines in lieu of double or interlacing lines or interlacing lines in lieu of double or single lines on any of the tramways and may with the like consent at any time alter the position of any of the tramways or any part thereof in the road including the waste.

(3) Provided that if in the construction of any works under this section any rail is intended to be so laid nearer to the footpath than previously authorised in such a manner that for a distance of thirty feet or upwards a less space than nine feet six inches would intervene between it and the outside of the footpath on either side of the road the Company shall not less than one month before commencing the works give notice in

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A.D. 1910. writing to every owner and occupier of houses shops or warehouses abutting on the place where such less space would intervene and such rail shall not (except with the consent of the Board of Trade) be so laid if the owners or occupiers of one-third of such houses shops or warehouses by writing under their hands addressed and delivered to the Company within three weeks after receiving the notice from the Company express their objection thereto.

Power to cross colliery railway and roads on level.

18. The Company may in the construction of Tramways Nos. 2 3 and 4 carry the same with a single line only whilst the said tramways shall consist of a single line and afterwards with a double line only across and on the level of the colliery railway and roads next herein-after mentioned (that is to say):—

No. on deposited Plans.	Parish.	Description of Railway or Road.
5	Auchterderran (Burgh of Lochgelly).	Colliery railway level crossing (Auchterderran Road).
7	Kinglassie - - -	Road leading to "Redwells."
17	Do. - - -	Main road from Kirkcaldy to Kinglassie.
8	Kirkcaldy and Dysart - -	Road leading to "Skeddoway."

Company may reduce footpath for constructing tramways.

19. The Company may increase the carriageway of any street or road in which any of the tramways are authorised to be laid to such extent as may be necessary by reducing the width of the footpath or waste on each or either side of such street or road Provided that neither the footway nor waste shall be reduced in width without the consent of the road authority nor as regards the footway to such an extent as to be less than six feet wide.

Power to lop trees.

20. The Company may cut and lop any trees planted in or near any highway along which the tramways or any of them are laid which may in any way interfere with the construction or working of such tramways or the trolley telephone or other wires or with the clear and safe passage of the carriages and the passengers thereon doing no unnecessary damage to the trees and making compensation to any persons who may sustain damage by the exercise of the power conferred by this section such compensation to be finally settled by the sheriff in manner provided in section 31 of the Order of 1905 Provided that

except in cases of emergency the Company shall give written notice to the owners or reputed owners or their known agents or factors eight days before exercising the said powers. A.D. 1910.

MISCELLANEOUS.

21. Notwithstanding anything contained in the Tramways Act 1870 the Roads and Bridges (Scotland) Act 1878 the Local Government (Scotland) Act 1889 the Burgh Police (Scotland) Act 1892 the Burgh Police (Scotland) Act 1903 and any Acts amending the same or in any byelaws made thereunder by the magistrates or local authority or authorities as the case may be in whose districts the tramways or parts thereof are situate it shall not be necessary for carriages used on the tramways to be licensed as stage or hackney carriages or otherwise or for the drivers or conductors in charge of carriages used on such tramways to be licensed as drivers or conductors of stage or hackney carriages or otherwise Nothing in this section shall apply to any licences required to be taken out under statutes relating to inland revenue.

Exemption
of tramway
cars &c. from
licensing.

22. The following sections of the Order of 1905 are hereby incorporated with and form part of this Order and shall so far as applicable extend and apply to the tramways as fully and effectually as if those sections had been re-enacted in this Order with reference thereto (that is to say):—

Incorporation and
application
of certain
provisions
of Order of
1905 to
tramways.

- Section 15 (Tramways to be kept on level of surface of road);
- Section 16 (Plan of proposed mode of construction);
- Section 18 (Rails of tramways);
- Section 19 (Penalty for not maintaining rails and roads)
(Board of Trade may on complaint inspect tramways);
- Section 20 (Local and road authority to have access to sewers);
- Section 21 (Cross-overs to be constructed in certain cases);
- Section 23 (Temporary tramways may be made where necessary);
- Section 25 (Application of road materials excavated in construction of works);
- Section 26 (Shelters or waiting-rooms);
- Section 27 (Stopping of roads during execution of works);

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- Section 28 (As to electrical works &c.);
- Section 30 (As to removal of snow &c.);
- Section 31 (Attachment of brackets to buildings);
- Section 32 (For protection of local authority of area affected) except subsection (5) of that section;
- Section 36 (Passengers' fares);
- Section 37 (Passengers' luggage);
- Section 38 (Carriage of passengers and goods);
- Section 39 (Rates for goods in parcels &c.);
- Section 40 (Service of carriages);
- Section 41 (Cheap fares for labouring classes);
- Section 42 (As to fares on Sundays or holidays);
- Section 43 (Periodical revision of rates and charges);
- Section 44 (Byelaws);
- Section 46 (Penalty for malicious damage);
- Section 47 (Provisions as to motive power);
- Section 48 (Special provisions as to use of electrical power);
- Section 49 (Alteration of telegraph lines of Postmaster-General);
- Section 50 (For protection of Post Office telegraph lines);
- Section 51 (Apparatus used for mechanical power to be deemed part of tramways);
- Section 52 (Power to acquire patent rights);
- Section 56 (Agreements with road authority);
- Section 59 (Power to lease tramways);
- Section 61 (Form and delivery of notices);
- Section 62 (Consents of local or road authority);
- Section 64 (Recovery of penalties);
- Section 65 (Orders &c. of Board of Trade).

Amendment
of Order of
1905.

23. Section 45 of the Order of 1905 shall for the purposes of that Order be read and have effect as if the words "not exceeding fifteen miles an hour" were omitted therefrom and section 57 of the Order of 1905 shall for the purposes of that Order be read and have effect as if the words "with the consent of the Board of Trade" were inserted therein after the word "may" in the first line of that section and the said sections as

so amended are hereby incorporated with this Order and shall extend and apply to and in relation to the tramways. A.D. 1910.

24. Notwithstanding anything contained in section 30 of the Tramways Act 1870 where notice of any work has been given by the Company to any company persons or person and such company persons or person have not within fourteen days of the receipt of such notice given notice to the Company to lower or otherwise alter their mains or pipes tubes wires or apparatus such company persons or person shall be deemed to have approved such work. As to alterations of gas and water mains and pipes.

25. Section 30 of the Tramways Act 1870 (except subsections (1) and (5) thereof) shall in its application to the tramways have effect as if wires or apparatus laid in a road included wires or apparatus erected or carried over a road or footpath. Application of section 30 of Tramways Act 1870 to overhead wires.

26. The Company may enter into and carry into effect contracts and agreements with the Dunfermline and District Tramways Company under sections 57 and 59 of the Order of 1905 as amended by this Order and for any of the purposes of this Order. Power to enter into agreements.

27. During the continuance of any contract or agreement to be entered into under the provisions of section 57 or section 59 of the Order of 1905 the tramways of the Company and the tramways or light railways of any local authority company or person entering into any such contract or agreement shall be regarded as one undertaking for the purpose of calculating maximum fares rates and charges. Provision as to contracts &c. under sections 57 and 59 of Order of 1905.

28. Section 43 of the Tramways Act 1870 shall in its application to the undertaking and to the Company in relation thereto be modified as follows (that is to say):— Purchase of undertaking.

- (1) The local authorities in whose districts the tramways are situate (if by resolution passed at a special meeting of the members constituting each of such local authorities they so decide) may within six months after the expiration of a period of thirty-five years from the commencement of this Order and within six months after the expiration of every subsequent period of seven years with the approval of the Board of Trade (which approval the Board of Trade are hereby authorised to give) by notice in writing require the Company to sell to them the whole of the tramways situate within such districts as one

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undertaking upon the terms of paying the fair market value of the undertaking as a going concern and all lands buildings works materials and plant of the Company suitable to and used by the Company exclusively for the purposes thereof but without any allowance for compulsory purchase such value to be in cases of difference determined by an arbiter to be appointed by the Board of Trade on the application of either party and the costs of such arbitration to be borne and paid as the arbiter may direct:

- (2) If any of the local authorities aforesaid be unwilling to join in such purchase the remaining local authorities or authority may exercise the powers of purchasing the undertaking under the immediately preceding subsection Provided that the provisions of the Tramways Act 1870 with respect to the purchase of the undertaking by a local authority shall from the date of such purchase apply and be exerciseable in respect of such portion of the undertaking as is situate within the district of any local authority not being a party to such joint purchase by such local authority except that the period of forty years shall be deemed to be substituted for the period of twenty-one years in section 43 of that Act mentioned:
- (3) No such resolution shall be valid unless one month's previous notice of the meeting and of the purpose thereof has been given in the manner in which notices of meetings of the local authority are usually given nor unless two-thirds of the members constituting the local authority are present and vote at the meeting and a majority of those present and voting concur in the resolution and it shall be lawful for the chairman of any such meeting with the consent of a majority of the members present to adjourn the same from time to time:
- (4) When any such sale shall have been made all the rights powers and authorities of the Company in respect of the undertaking so purchased shall be transferred to vested in and may be exercised by the local authorities or authority as the case may be in like manner as if such tramways were constructed by the local

authorities or authority as the case may be under powers conferred upon such local authorities or authority as the case may be by a Provisional Order under the Tramways Act 1870 together with power to place and run carriages upon and to work such tramways and to demand and take tolls rates and charges in respect of the same or in respect of the use of such carriages and in reference to such tramways the local authorities or authority shall be deemed to be the Company:

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- (5) The local authorities may subject to the approval of the Board of Trade enter into such agreements and arrangements inter se as may be necessary or convenient for giving effect to the purposes of the foregoing provisions:
- (6) The Company shall not be bound to sell any part of their tramways or tramway undertaking to any local authority unless at the same time the whole of the undertaking is purchased by such local authority or by them and one or more of the other local authorities within whose districts the tramways are situate as herein-before provided.

29.—(1) It shall be lawful for the Postmaster-General in any street or public road or part of a street or public road in which he is authorised to place a telegraph to use for the support of such telegraph any posts and standards (with the brackets connected therewith) erected in any such street or public road by the Company in connexion with the tramways and to lengthen adapt alter and replace such posts standards and brackets for the purpose of supporting any telegraph and from time to time to alter any telegraph so supported subject to the following conditions:—

Use of tramway posts by Postmaster-General.

- (A) In placing maintaining or altering such telegraph no obstruction shall be caused to the traffic along or the working or user of the tramways:
- (B) The Postmaster-General shall give to the Company not less than twenty-eight days notice in writing of his intention to exercise any of the powers of this section and shall in such notice specify the streets or public roads or parts of streets or public roads along which

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it is proposed to exercise such powers and the manner in which it is proposed to use the posts standards and brackets and also the maximum strain and the nature and direction of such strain Any difference as to any matter referred to in such notice shall be determined as herein-after provided:

- (c) Unless otherwise agreed between the Postmaster-General and the Company the Postmaster-General shall pay the expense of lengthening adapting altering or replacing under the provisions of this section any post standard or bracket and the expense of providing and maintaining any appliances or making any alteration rendered necessary in consequence of the exercise of the powers of this section for the protection of the public or the unobstructed working or user of the tramways or to prevent injurious affection of the Postmaster-General's telegraphs or any telegraphic or telephonic line or electrical apparatus of the Company or by any regulations which may from time to time be made by the Board of Trade arising through the exercise by the Postmaster-General of the powers conferred by this section:
- (D) Unless otherwise agreed or in case of difference determined as herein-after provided all telegraphs shall be attached to the posts standards or brackets below the level of the trolley wires and on the side of such posts or standards farthest from the trolley wires Any difference as to the conditions of attachment shall be determined as herein-after provided:
- (E) Unless otherwise agreed no telegraph shall be attached to any post or standard placed in or near the centre of any street or public road:
- (F) The Postmaster-General shall cause all attachments to posts standards or brackets used by him under the powers of this section to be from time to time inspected so as to satisfy himself that the said attachments are in a proper condition and state of repair:
- (G) The Postmaster-General shall make good to the Company and shall indemnify them against any loss

damage or expense which may be incurred by them through or in consequence of the exercise by the Postmaster-General of the powers conferred upon him by this section unless such loss damage or expense be caused by or arise from gross negligence on the part of the Company their officers or servants: A.D. 1910.

- (H) The Postmaster-General shall make such reasonable contribution to the original cost of providing and placing any post standard or bracket used by him and also to the annual cost of the maintenance and renewal of any such post standard or bracket as having regard to the respective interests of the Company and the Postmaster-General in the use of the post standard or bracket and to all the circumstances of each case may be agreed upon between the Postmaster-General and the Company or failing agreement determined as herein-after provided:
- (I) The Company shall not be liable for any interference with or damage or injury to the telegraphs of the Postmaster-General arising through the exercise by the Postmaster-General of the powers conferred by this section and caused by the maintaining and working of the tramways or by any accident arising thereon or by the authorised use by the Company of electrical energy unless such interference damage or injury be caused by gross negligence on the part of the Company their officers or servants:
- (J) If it shall become necessary or expedient to alter the position of or remove any post standard or bracket the Postmaster-General shall upon receiving twenty-eight days notice thereof at his own expense alter or remove the telegraph supported thereby or at his option retain the post standard or bracket and pay the Company the value of the same Provided that if the Company or the body having the control of the street or public road object to the retention of the post standard or bracket by the Postmaster-General a difference shall be deemed to have arisen and shall be determined as herein-after provided.

(2) Nothing in this section contained shall prevent the Company from using their posts standards or brackets for the

A.D. 1910. support of any of their electric wires and apparatus in connexion with their tramways or shall take away any existing right of the local authority of using the posts standards or brackets of the Company in connexion with the lighting of the streets or otherwise Provided that any difference between the Postmaster-General and the local authority in relation to the use of the posts standards or brackets by the Postmaster-General and the local authority respectively shall be determined as herein-after provided.

(3) All differences arising under this section shall be determined in manner provided by sections 4 and 5 of the Telegraph Act 1878 for the settlement of differences relating to a street or public road.

(4) In this section the expression "Company" includes their lessees the expression "telegraph" has the same meaning as in the Telegraph Act 1869 and other expressions have the same meaning as in the Telegraph Act 1878.

For protec-
tion of burgh
of Kirkcaldy.

30. For the protection of the provost magistrates and councillors of the royal burgh of Kirkcaldy (in this section respectively referred to as "the Kirkcaldy Corporation" and "the burgh") the following provisions shall unless otherwise agreed upon between the Kirkcaldy Corporation and the Company apply and have effect (that is to say):—

(1) Notwithstanding anything contained in section 43 of the Tramways Act 1870 as modified by the section of this Order of which the marginal note is "Purchase of undertaking" the Kirkcaldy Corporation may at the expiration of five years from the eleventh day of August one thousand nine hundred and ten and at the expiration of every subsequent period of five years by notice in writing require the Company to sell and thereupon the Company shall sell to them so much of the tramways as is situate within the burgh upon the terms of paying the then structural value thereof exclusive of any allowance for past or future profits Such value to be in case of difference determined by an arbiter to be appointed failing agreement on the application of either party by the Board of Trade:

(2) When any such sale shall have been made all the rights powers and authorities of the Company in respect of

the portion of the tramways so purchased shall be transferred to vested in and may be exercised by the Kirkcaldy Corporation and such portion shall for all purposes be and be deemed to form part of the tramway undertaking of the Kirkcaldy Corporation: A.D. 1910.

- (3) In the event of the Kirkcaldy Corporation purchasing the said portion of the tramways as aforesaid the Company may run over and use with their engines and carriages and with their officers and servants for the purpose of conveying passengers passengers' luggage and parcels the said portion of the tramways or any part or parts thereof so purchased by the Kirkcaldy Corporation as aforesaid together with all sidings works facilities and conveniences and electrical or other motive power connected therewith and the Company may demand and take rates and charges in respect of passengers passengers' luggage and parcels so conveyed upon the said portion of the tramways:
- (4) The rates and charges to be demanded and taken and the conditions and regulations to be observed in respect of the user of the said portion of the tramways and the consideration to be paid therefor shall be such as may be from time to time agreed between the Company and the Kirkcaldy Corporation or in default of agreement determined by an arbiter appointed by the Board of Trade:
- (5) In the event of the Kirkcaldy Corporation purchasing the said portion of the tramways as aforesaid then in the exercise of the running powers by this section reserved to the Company the tramways of the Company and the tramways of the Kirkcaldy Corporation shall be regarded as one undertaking for the purpose of calculating maximum fares rates and charges and the fares rates and charges to be demanded in respect of the conveyance of traffic by the Company on the said tramways of the Kirkcaldy Corporation shall not exceed the respective maximum fares rates and charges which are for the time being authorised to be taken by the Kirkcaldy Corporation:
- (6) The Company shall at their own expense and to the reasonable satisfaction of the Kirkcaldy Corporation

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pave with setts so much of any road within the burgh whereon any portion of the tramways is laid as lies between the rails of the tramways and for a distance of eighteen inches beyond the rails of and on each side of the tramways:

- (7) Any dispute or difference arising between the Company and the Kirkcaldy Corporation under this section shall be referred to and determined by an arbiter to be appointed by the Board of Trade on the application of either party.

For protection of National Telephone Company Limited.

31. For the protection of the National Telephone Company Limited (in this section referred to as "the Telephone Company") the following provisions shall apply and have effect (that is to say):—

- (1) The Company shall not at any time during the currency of the Telephone Company's licence from the Postmaster-General to conduct telephonic business remove or interfere with any poles wires pipes conduits or other apparatus (in this section referred to as "apparatus") of the Telephone Company situate on any lands acquired by the Company under the powers of this Order except where the Company require so to do for the purposes of their undertaking and in such case the Company shall at their own expense prior to any such interference provide substituted apparatus in such positions as may be reasonably approved by the Telephone Company and if at any time during the currency of the said licence the Company shall require to remove or interfere with such substituted apparatus they shall provide other substituted apparatus in accordance with the foregoing provisions of this section:
- (2) If any difference arises under this section between the Company and the Telephone Company such difference shall be settled by an arbitrator to be appointed on the application of either party by the Board of Trade.

For protection of North British Railway Company.

32. The following provisions for the protection of the North British Railway Company (in this section called "the Railway Company") and the railways owned leased worked or run over by the Railway Company (in this section called "the

railways") shall unless otherwise agreed between the Company and the Railway Company apply and have effect (that is to say) :— A.D. 1910.

- (1) The Company shall not take or acquire by compulsion under the provisions of this Order any railways lands or property belonging to the Railway Company or in which the Railway Company is interested except No. 27 in the parish of Kinglassie for the purpose of Tramway No. 3:
- (2) Before commencing any works or operations under the powers of this Order affecting any of the railways or affecting any bridge over or under any of the railways or the roadway under or on any such bridge the Company shall submit plans and sections of such works or operations to the Railway Company for their approval and the said works and operations shall be constructed and carried on in conformity only with such plans and sections and at the sight and to the reasonable satisfaction of the engineer of the Railway Company and such works shall thereafter be maintained and repaired by the Company to the reasonable satisfaction of such engineer Provided that the approval of the Railway Company shall not be unreasonably withheld and that it shall be deemed to have been given unless the Railway Company signify their disapproval within twenty-eight days after submission of the said plans and sections:
- (3) The Company shall not in the construction alteration maintenance or use of the tramways and works by this Order authorised injure alter or interfere with the structure of any bridge over or under any of the railways or cause any interruption to or interference with the traffic on any of the railways except as otherwise specially provided by this Order:
- (4) If in constructing adapting or altering the tramways or works by this Order authorised the Company lower the level of any road passing under any of the railways the Company shall if in the opinion of the arbiter to be appointed as after-mentioned it is necessary underpin or otherwise strengthen the bridge carrying such railway over such road and such

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underpinning or strengthening shall be executed at the sole cost of the Company and at the sight and to the reasonable satisfaction of the engineer of the Railway Company and the Company shall pay to the Railway Company all expenses properly incurred by them in connexion with such underpinning or strengthening including engineering expenses and also the expense of inspectors signalmen watchmen and others and all extra precautions reasonably required for the safety and working of traffic necessitated by the works or operations of the Company:

(5) If in consequence of the construction or existence or use of the said tramways it may be necessary to reconstruct or alter or strengthen the structure of any such bridge the Company shall bear the reasonable expense of such reconstruction alteration or strengthening and the work thereof shall be carried out by the Company at the sight and to the reasonable satisfaction of the Railway Company's engineers:

(6) If any injury to or interference with any of the railways or any bridge or works of the Railway Company or any interruption to the traffic on any of the railways shall arise or be occasioned at any time by the works or operations of the Company they shall forthwith make good or remove such injury interference or interruption at their own expense or the Railway Company may execute the necessary works for that purpose at the expense of the Company and the Company shall repay to the Railway Company all costs and expenses properly incurred by them in so doing and all loss or damage sustained by the Railway Company in consequence of such injury interference or interruption:

(7) Nothing in this Order contained or which may be done in pursuance thereof shall prevent the Railway Company from maintaining and repairing and when necessary altering extending or reconstructing any of the railways or bridges or other works of the Railway Company without interference on the part of the Company and without incurring any liability to the Company or to any person working or using the

tramways for any loss injury damage expense or interruption of traffic which may arise from such maintenance repair alteration or reconstruction and any extra expense which the Railway Company may incur in such maintenance repair alteration extension or reconstruction by reason of the construction or existence of the tramways shall be paid by the Company and such extra expense if any shall be determined by the arbiter to be appointed as hereinafter mentioned Provided that all such operations shall be executed by the Railway Company in such manner as to cause as little interruption or inconvenience as practicable to the traffic on the tramways Provided also that the Railway Company may if necessary in consequence of the operations of the Railway Company lay at the expense of the Company temporary tramways to maintain the continuity of the tramway traffic Provided further that the Railway Company shall give twenty-eight days notice in writing to the Company before commencing any such operations as are referred to in this subsection and the same so far as interfering with the tramways shall be conducted at the sight and to the reasonable satisfaction of the engineer of the Company:

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- (8) The Company shall pay to the Railway Company any extra expense which the Railway Company may incur or be put to in maintaining or repairing any bridge or the roadway thereon or any approach to any bridge or any part of any road for the maintenance of which the Railway Company is liable by reason of the construction use or existence of the tramways and such extra expense if any shall be determined by the arbiter appointed as herein-after mentioned:
- (9) If having regard to the proposed position of the tramways or works of the Company when considered in relation to the position of the works of the Railway Company at any point where the wires of the Railway Company pass over or under the tramways it is advisable in the reasonable opinion of the Railway Company that the electric telegraphic telephonic or

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signal wires or apparatus belonging to or maintainable by the Railway Company should be altered the Railway Company may execute any works reasonably necessary for such alteration and the reasonable expense of executing such works shall be borne by the Company:

- (10) The Company shall not stop any tramway cars or other carriages on any level crossing by the tramways of any of the railways so as to interfere with or obstruct the traffic on such railway to a greater extent than is reasonably necessary for the proper working of the tramways and no trains shall be allowed to stand on any level crossing over which the tramway lines are constructed so as to interfere with or obstruct the traffic on the tramway:
- (11) The protection afforded to the Railway Company by this section shall not extend to the case of any interference due to induction or leakage with the wires lines and apparatus of the Railway Company or the currents therein to which section 48 of the Order of 1905 as incorporated by this Order applies But the Railway Company shall not by reason of being specially protected as regards other matters under this section lose as regards any such interference any protection to which they are otherwise entitled:
- (12) If any difference shall arise between the Company or their engineer and the Railway Company or their engineer as to the meaning of this section or as to any plans and sections or as to any work or the method of executing the same or as to any expenses referred to in this section the same shall be determined by an arbiter to be agreed upon between the Company and the Railway Company or failing agreement to be nominated by the Board of Trade on the application of any of the parties.

For protection of
County
Council of
County of

33. For the additional protection of the County Council of the County of Fife and the Kirkcaldy District Committee of that county (herein-after respectively referred to as "the County Council" and "the District Committee") the following provisions

shall unless otherwise agreed upon between the County Council or the District Committee as the case may be and the Company have effect:—

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Fife and
Kirkcaldy
District
Committee.

- (1) If the Company alter the level of any road the portion of the road so altered and also in case of widenings of the road the additions to the existing road shall be bottomed with nine inches of whinstone rubble and finished with six inches whinstone metal properly consolidated and the drainage system and fencing of the road in so far as they may have been dislocated by the Company's operations shall be reinstated in such a manner that the road shall be drained and fenced in as efficient a manner as it was before the commencement of the Company's operations all at the Company's expense:
- (2) The Company shall if and when and as may be reasonably required by the District Committee sufficiently fence to the reasonable satisfaction of the District Committee such portion or portions of the highway as may have been rendered dangerous by reason of the construction existence or use of the tramways:
- (3) The Company shall not without the consent of the District Committee use salt or any other material for thawing ice or snow on any highway:
- (4) The surplus paving metalling or material which the Company are required by section 25 of the Order of 1905 to deliver to the surveyor of the road authority shall be delivered to him at such point on the tramway route not being at a greater distance than one mile from the point where the said surplus paving metalling or material was excavated as the surveyor may require:
- (5) If any standard or pole on the line of the tramway after erection is an obstruction to the public traffic the Company shall alter the position thereof in such manner as the County Council or District Committee shall reasonably require:
- (6) The Company shall not notwithstanding anything contained in section 26 of the Order of 1905 erect

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except in such position as failing agreement between the Company and the County Council or District Committee as the case may be shall be determined by arbitration as herein-after provided any sheds or shelters or waiting rooms within twenty-five feet of the centre of the highway without the consent of the District Committee:

(7) For the purpose of enabling the County Council to acquire land the Company shall allow the County Council to exercise in their name their powers with respect to works H to P inclusive shown on the deposited plans subject to an indemnity being given by the County Council against all liability in respect of the exercise of such powers:

(8) If any difference shall arise between the Company and the County Council or the District Committee under this section the same shall be determined by the arbitration of an arbiter to be agreed upon between the parties or failing agreement to be appointed by the sheriff on the application of either party.

Tramways
deposit fund
not to be re-
paid except
so far as
tramways
are opened.

34. Whereas pursuant to the General Orders under the Private Legislation Procedure (Scotland) Act 1899 and to the Parliamentary Deposits Act 1846 as applied in such General Orders a sum of three thousand one hundred and eight pounds seven shillings has been deposited with the King's and Lord Treasurer's Remembrancer on behalf of the Court of Exchequer in Scotland in respect of the application for this Order of which sum the sum of three thousand and fourteen pounds seven shillings represents five per centum upon the amount of the estimate in respect of the tramways originally proposed to be authorised by this Order and the remainder (herein-after referred to as "the works deposit fund") (that is to say) the sum of ninety-four pounds represents four per centum upon the amount of the estimate for the works originally proposed to be authorised by this Order other than tramways works And whereas a sum of two thousand three hundred and ninety-seven pounds seven shillings part of the total amount of the said deposit for the said tramways represents five per centum on the amount of the estimate in respect of the tramways by this Order authorised

(which last mentioned sum is in this Order referred to as "the tramways deposit fund") Be it enacted that notwithstanding anything contained in the said Parliamentary Deposits Act 1846 the tramways deposit fund shall not be paid or transferred to or on the application of the person or persons or the majority of the persons named in the warrant or order issued in pursuance of the said Act or the survivors or survivor of them or the executors or administrators of such survivor (which persons survivors or survivor or the executors or administrators of such survivor are or is in this Order referred to as "the depositors") unless the Company shall previously to the expiration of the period limited by this Order for completion of the tramways open the same for the public conveyance of passengers and if the Company shall make default in so opening the tramways the tramways deposit fund shall be applicable and shall be applied as provided by the next following section. Provided that if within such period as aforesaid the Company open any portion of the tramways for public traffic then on the production of a certificate of the Board of Trade specifying the length of the portion of the tramways opened as aforesaid and the portion of the tramways deposit fund which bears to the whole of the tramways deposit fund the same proportion as the length of the tramways so opened bears to the entire length of the tramways the Court of Exchequer in Scotland shall on the application of the depositors order the portion of the tramways deposit fund specified in the certificate to be paid or transferred to them or as they shall direct and the certificate of the Board of Trade shall be sufficient evidence of the facts therein certified and it shall not be necessary to produce any certificate of the Act confirming this Order having passed anything in the Parliamentary Deposits Act 1846 to the contrary notwithstanding.

A.D. 1910.
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35. If the Company do not previously to the expiration of the period limited for the completion of the tramways complete the same and open them for the public conveyance of passengers then and in every such case the tramways deposit fund or so much thereof as shall not have been paid to the depositors shall be applicable and after due notice in the Edinburgh Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the tramways or any portion thereof or who have been subjected to injury or loss in consequence of the

Application
of tramways
deposit fund.

A.D. 1910. compulsory powers of taking property conferred upon the Company by this Order and also in compensating all road authorities for the expense incurred by them in taking up any tramway or materials connected therewith placed by the Company in or on any road vested in or maintainable by such road authorities respectively and in making good all damage caused to such roads by the construction or abandonment of such tramways and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the Court of Exchequer in Scotland may seem fit And if no such compensation is payable or if a portion of the tramways deposit fund has been found sufficient to satisfy all just claims in respect of such compensation then the tramways deposit fund or such portion thereof as may not be required as aforesaid shall if a judicial factor has been appointed or the Company is insolvent and has been ordered to be wound up or the undertaking has been abandoned be paid or transferred to such factor or to the liquidator or liquidators of the Company or be applied in the discretion of the Court of Exchequer in Scotland as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or re-transferred to the depositors Provided that until the tramways deposit fund has been repaid or re-transferred to the depositors or has become otherwise applicable as herein-before mentioned any interest or dividends accruing thereon shall from time to time and as often as the same shall become payable be paid to or on the application of the depositors.

Release of
portion of
tramways
deposit in
excess of
tramways
deposit fund.

36. Notwithstanding anything in this Order contained on the application of the depositors at any time after the commencement of this Order the Court of Exchequer in Scotland may and shall order that a sum of six hundred and seventeen pounds or the investments for the time being representing the same (being so much of the total sum deposited in respect of the tramways originally proposed to be authorised by this Order as is in excess of the tramways deposit fund) with any interest or dividends accrued thereon or any invested accumulations of the same be paid or transferred to the depositors or as they may direct and in any application under this section it shall not be necessary to produce any certificate of the Act confirming this Order having passed.

Repayment
of works
deposit fund.

37. On the application of the depositors at any time after the commencement of this Order the Court of Exchequer in

Scotland may and shall order that the works deposit fund and the interest and dividends thereon shall be paid or transferred to the depositors or any other person or persons whom the depositors may appoint in that behalf. A.D. 1910.

38. Nothing in this Order contained shall exempt the Company or the tramways from the provisions of any general Act relating to tramways passed before or after the commencement of this Order or from any future revision or alteration under the authority of Parliament of the maximum fares rates or charges authorised by this Order. Provision as to general Tramways Acts.

39. The Company shall not erect any generating station or take a supply of energy from any generating station (other than a generating station consented to by the Board of Trade under section 2 of the Electric Lighting Act 1909) unless the site for such generating station is specified in an Act of Parliament or in an Order confirmed by or having the effect of an Act of Parliament. Provided always that this section shall not apply to any sub-station for the transformation and distribution of electrical power or to any generating station which may be in existence and which shall not be extended beyond the limits of the site occupied by the buildings of such station at the time of the commencement of this Order. As to generating stations.

40. The Company shall deliver to the Registrar of Joint Stock Companies for Scotland a printed copy of this Order and he shall retain and register the same and if such copy is not so delivered within three months from the passing of the Act confirming this Order the Company shall incur a penalty not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director and manager of the Company who knowingly and wilfully authorises such default shall incur the like penalty. Every penalty under this section shall be recoverable summarily. Copy of Order to be registered.

There shall be paid to the registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

41. All costs charges and expenses of and preliminary and incident to the preparing for obtaining and passing of this Order and the confirming Act or otherwise in relation thereto shall be paid by the Company. Costs of Order.

[Ch. lxi.] *Wemyss Tramways (Extensions) Order* [10 EDW. 7 &
Confirmation Act, 1910. 1 GEO. 5.]

A.D. 1910.

The SCHEDULE referred to in the foregoing Order.

DESCRIBING PROPERTIES OF WHICH PORTIONS ONLY MAY BE TAKEN.

Parish.	Number on deposited Plans.	Description.
Kinglassie - - -	11	Private road and open forecourt to house and shop.
Kirkcaldy and Dysart -	10	Yard at side of smithy.
Auchterderran - -	15	Yard fronting house.
	16	Garden fronting house.
	17	Garden at side of house.
	18	Open forecourt to houses.
	19	Garden (forecourt) fronting house.
	20	Open forecourt to house and shop.
	21A	Entrance to cottages and gardens.
	25	Rough land fronting house.
	28	Garden (forecourt) to house.

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